

CHAPTER 32*Army Reserve Act, 1950***ARRANGEMENT OF SECTIONS****Section**

1. The army reserve.
2. Service as a militiaman.
3. Procedure and term of service on enlistment or re-engagement.
4. Calling out for annual training, special courses, etc.
5. Calling out on permanent service by proclamation.
6. Calling out on permanent service for home defence and overseas service.
7. Men called out on permanent service to form part of regular forces.
8. Duration of service of men called out on permanent service.
9. Directions for calling out on permanent service.
10. Calling out in aid of the civil power.
11. Government, discipline and pay of army reserve.
12. Transfer outside United Kingdom.
13. Enlistment and residence outside United Kingdom.
14. Punishment for failure to attend for permanent service, annual training, etc.
15. Punishment for inducing man of army reserve to desert or absent himself.
16. False pretence of desertion, etc.
17. Punishment of offences against orders and regulations.
18. Trial of offences.
19. Provisions as to offences triable both by court-martial and by court of summary jurisdiction.
20. Record of illegal absence.
21. Application of provisions of Army Act as to evidence.
22. Application of enactments respecting exemptions from tolls and conveyance of regular forces.
23. Payment and management of army reserve pensions.
24. Exercise of powers vested in holder of military office.
25. Exemption from parish offices, etc.
26. Service of notices.
27. Orders and regulations.
28. Interpretation.
29. Repeals, transitional provisions and savings.
30. Short title and commencement.

SCHEDULES :

First Schedule—Transitional provisions as to calling out on permanent service of certain men of army reserve.

Second Schedule—Territories in which men may not be enlisted into army reserve.

Third Schedule—Enactments repealed.

An Act to consolidate certain enactments relating to the army reserve. [26th October 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) It shall be lawful for His Majesty to keep up a force The army in the United Kingdom called the army reserve, to consist of two reserve. classes.

(2) The classes of the army reserve shall be constituted as follows:—

Class 1.—The first class shall consist of—

- (a) men transferred (whether before or after the commencement of this Act) to the army reserve in pursuance of the Army Act,
- (b) men serving in the army reserve for a term of part-time service within the meaning of Part I of the Act of 1948, and
- (c) men enlisted or re-engaged in pursuance of this Act for service in the said class.

Class 2.—The second class shall consist of men who—

- (a) being out-pensioners of Chelsea hospital, or
 - (b) having served in any of the regular forces for not less than the full term of their original enlistment,
- may be enlisted or re-engaged therein in pursuance of this Act.

(3) In the last foregoing subsection the expression “out-pensioners of Chelsea hospital” includes all persons whose claims for prospective or deferred pension have been registered in virtue of any warrant of His Majesty.

(4) For the purpose of establishing a supplemental reserve, it shall be lawful for His Majesty to direct that the first class of the army reserve shall consist of two divisions.

(5) Each class of the army reserve shall consist of such number of men as may from time to time be provided by Parliament for that class.

2.—(1) Where a man who has never served in the regular Service as a forces is enlisted into the first class of the army reserve, he shall militiaman. serve therein as a militiaman.

(2) Where a man who has been discharged from the regular forces becomes a man of the first class of the army reserve otherwise than by transfer in pursuance of the Army Act, he may, if

it is so prescribed by regulations made under this Act and subject to the conditions (if any) which may be so prescribed, serve in the army reserve as a militiaman.

(3) A militiaman may be re-engaged, and when re-engaged shall continue subject to the terms of service applicable to militiamen.

(4) Subject to the provisions of this Act, orders or regulations made thereunder may provide for the formation of militiamen into regiments, battalions or other military bodies, and for appointing, transferring or attaching militiamen to corps, and for posting, attaching or otherwise dealing with militiamen within corps.

(5) A militiaman who enlists into the regular forces shall upon such enlistment be deemed to be discharged from the army reserve.

Procedure and
term of service
on enlistment
or re-engage-
ment.

3.—(1) Every man who becomes a man of the army reserve by being enlisted or re-engaged in pursuance of this Act shall be enlisted or re-engaged, as the case may be, in such manner, and for a term of such length and to begin on such date, as may be prescribed.

(2) Subject to the provisions of this Act, and save as is otherwise prescribed, a man enlisting in the army reserve shall be attested in the same manner as a recruit in the regular forces, and the following sections of the Army Act, that is to say,—

- (a) section eighty (which relates to the mode of enlistment and attestation);
- (b) section ninety-eight (which imposes a fine for unlawful recruiting);
- (c) section ninety-nine (which makes recruits punishable for false answers);
- (d) section one hundred (which relates to the validity of attestation and enlistment or re-engagement); and
- (e) so much of section one hundred and sixty-three as relates to an attestation paper, or a copy thereof, or a declaration, being evidence,

shall apply in like manner as if they were re-enacted in this Act, with the substitution for the expression “soldier” of the expression “man” or, if the context so requires, “man of the army reserve”, and for the expression “regular forces” of the expression “army reserve”.

(3) A man enlisting in the army reserve may be attested by a regular officer, and the sections of the Army Act specified in the last foregoing subsection together also with section thirty-three

of that Act (which relates to false answers on enlistment) shall, in their application to the army reserve, be construed as if the expressions "justice" and "justice of the peace" included such an officer.

4.—(1) Subject to the provisions of this section, all or any of the men of the army reserve may be called out for annual training at such time or times, and at such place or places within the United Kingdom, and for such period or periods, as may be prescribed: Calling out for annual training, special courses, etc.

Provided that a man of the army reserve not being a militiaman shall not be liable to be called out under this subsection in any one year for more than twelve days or twenty drills.

(2) Subject to the provisions of this section, a militiaman may, in addition to being called out for annual training, be called out for a special course or special courses of training at such place or places within the United Kingdom or the Isle of Man, at such time or times, and for such period or periods, not exceeding in the whole six months, as may be prescribed, in like manner and subject to the like conditions as he may be called out for annual training.

(3) Where one of the conditions on which a militiaman was enlisted or re-engaged is that he shall not be called out for training, whether special or annual, for a longer period than the period specified in his attestation paper, he shall not be liable under the foregoing provisions of this section to be called out for any longer period.

(4) The foregoing provisions of this section shall not apply to men serving in the army reserve for a term of part-time service within the meaning of Part I of the Act of 1948, but such men shall perform such training as they may be required to undergo under the said Part I.

(5) A man of the army reserve may, during any period of training for which he may be called out or which he may be required to undergo as aforesaid, be attached to and trained with any body of the regular or auxiliary forces or, if he is a militiaman called out for a special course of training under subsection (2) of this section, with any other body of His Majesty's forces.

5.—(1) In case of imminent national danger or of great emergency it shall be lawful for His Majesty in Council by proclamation to order that the army reserve shall be called out on permanent service; and any man called out in pursuance of a proclamation under this subsection shall,— Calling out on permanent service by proclamation.

(a) if he belongs to the first class of the army reserve, be liable while so called out to serve either in the United Kingdom or elsewhere;

- (b) if he belongs to the second class of the army reserve, be liable while so called out to serve in the United Kingdom only.

(2) Before a proclamation is issued under the last foregoing subsection the occasion thereof shall be communicated to Parliament, if Parliament be then sitting; and if Parliament be not then sitting—

- (a) the occasion of the proclamation shall be declared in Council and notified by the proclamation, and
- (b) if Parliament be then separated by such an adjournment or prorogation as will not expire within ten days, a proclamation shall be issued for the meeting of Parliament within ten days, and Parliament shall accordingly meet and sit on the day appointed by the proclamation and shall continue to sit and act in like manner as if it had stood adjourned or prorogued to that day.

(3) Where a proclamation under subsection (1) of this section has been issued, it shall be lawful for His Majesty at any time thereafter by proclamation to order that all militiamen shall cease to be called out on permanent service.

Calling out on permanent service for home defence and overseas service.

6.—(1) Without prejudice to the provisions of the last foregoing section, but subject to the provisions of this section,—

- (a) any man of the army reserve (whether he entered the reserve on transfer or re-engagement or on being enlisted or on being deemed to be enlisted) shall during the whole of his service therein be liable to be called out on permanent service for home defence service;
- (b) any man who has been transferred to the army reserve in pursuance of the Army Act shall, if on his transfer he was designated by the competent military authority as a man to whom this paragraph applies, be liable to be called out on permanent service for overseas service at any time during the first year of his service in the first class of the army reserve;
- (c) without prejudice to the provisions of the last foregoing paragraph, any man of the first class of the army reserve (whether he entered that class on transfer or re-engagement or on being enlisted or on being deemed to be enlisted) shall, if he has entered into an agreement in writing to be so liable at the time in question, be liable at any time during his service in the said first class to be called out on permanent service for overseas service.

Any exercise of the power of calling out men under paragraphs (b) and (c) of this subsection shall be reported to Parliament as soon as may be.

(2) A man called out on permanent service under any paragraph of the last foregoing subsection may, while on permanent service, be employed in any service for which, if not previously called out, he could have been called out under that subsection.

(3) The following limits of number shall have effect as respects the calling out of men under this section, that is to say:—

(a) the number of men liable to be called out by virtue of agreements made for the purposes of paragraph (c) of subsection (1) of this section, being either militiamen or other men who—

(i) are deemed to be enlisted in the army reserve for a term of part-time service within the meaning of Part I of the Act of 1948, or

(ii) have been enlisted in the army reserve (whether in pursuance of section two of the Act of 1948 or otherwise) for service in lieu of such part-time service as aforesaid,

shall not at any time exceed fifteen thousand;

(b) the aggregate number of men for the time being designated under paragraph (b) of subsection (1) of this section and men (other than those falling within the last foregoing paragraph) for the time being liable to be called out by virtue of agreements made for the purposes of paragraph (c) of the said subsection (1) shall not exceed thirty thousand.

(4) The number of men for the time being called out under any of the provisions of this section shall not be reckoned in the numbers for the time being authorised by Parliament for the regular forces.

(5) An agreement made for the purposes of paragraph (c) of subsection (1) of this section may be revoked by three months' notice in writing.

(6) In this section—

(a) the expression "home defence service" means service at any place in the United Kingdom in defence of the United Kingdom against actual or apprehended attack, and service on any flight of which the points of departure and intended return are within the boundaries of the United Kingdom or of the territorial waters thereof shall be deemed for the purposes of this section to be service in the United Kingdom notwithstanding that the flight may in its course extend beyond those boundaries; and

(b) the expression "overseas service" means service when the men in question are required for service outside the United Kingdom when warlike operations are in preparation or in progress,

and references in paragraphs (a) and (b) of this subsection to the United Kingdom shall be construed as if that expression included the Channel Islands and the Isle of Man.

(7) Nothing in the foregoing provisions of this section—

- (a) shall apply to a man who was a man of the army reserve on the sixteenth day of December, nineteen hundred and forty-nine, not being a man who has re-engaged or enlisted therein after that date;
- (b) in the case of a man who, being a soldier of the regular forces at the said date, has thereafter been transferred to the army reserve in pursuance of the Army Act, shall apply to him during his service therein as a man so transferred;

but the provisions of the First Schedule to this Act shall have effect in cases where, by virtue of this subsection, the operation of the foregoing provisions of this section is excluded.

Men called out on permanent service to form part of regular forces.

7.—(1) A man of the army reserve while called out on permanent service shall form part of the regular forces.

(2) The competent military authority may—

- (a) if it seems proper appoint any such man so called out to any corps as a soldier of the regular forces, and
- (b) within three months after any such appointment transfer him to any other corps.

(3) Nothing in this section shall render a man of the second class of the army reserve liable to serve outside the United Kingdom; and any such man may from time to time be transferred from one corps to another for the purpose of securing that he shall not be liable to serve outside the United Kingdom.

(4) Nothing in this section shall prejudice the provisions of paragraph (2) of section eighty-three of the Army Act (which relates to the transfer of soldiers of the regular forces).

Duration of service of men called out on permanent service.

8.—(1) Subject to the provisions of this section and of the First Schedule to this Act, a man of the army reserve when called out on permanent service shall be liable to serve until His Majesty no longer requires his services.

(2) A man shall not without his consent in writing be liable to serve under paragraph (b) or (c) of subsection (1) of section six of this Act for a period which, together with any previous period for which he was called out under either of those paragraphs, exceeds twelve months:

Provided that in the case of a man who, having been called out under the said subsection (1), is on permanent service when the army reserve is called out under section five of this Act, any

period thereafter during which he remains on permanent service shall not be treated for the purposes of this subsection as a period of service under the said paragraph (b) or (c).

(3) No man called out on permanent service shall be required to serve for a period exceeding in the whole the remainder unexpired of his term of service in the army reserve and any further period not exceeding twelve months during which, as a soldier of the regular forces, he can under section eighty-seven of the Army Act be detained in service after the time at which he would otherwise be entitled to be discharged:

Provided that a Secretary of State may, by regulations made under this Act, authorise any militiaman having the qualifications prescribed by those regulations to agree in writing that, if the time at which he would otherwise be entitled to be discharged from the army reserve occurs when he is called out on permanent service, he will continue to serve therein until the expiration of such period, whether definite or indefinite, as may be specified in the agreement; and if any man who enters into such an agreement is called out on permanent service, he shall be liable to be detained in service for the period specified in his agreement in the same manner in all respects as if his term of service were still unexpired.

9.—(1) A proclamation under subsection (1) of section five of this Act may order a Secretary of State from time to time to give, and when given to revoke or vary, such directions as may seem necessary or proper for calling out under that section the army reserve or all or any of the men belonging thereto. Directions for calling out on permanent service.

(2) It shall be lawful for a Secretary of State, at any time when it appears to him that the occasion so requires, to give, and when given to revoke or vary, such directions as he may think fit for calling out on permanent service in accordance with the provisions of subsection (1) of section six of this Act any man who by virtue of those provisions is liable to be so called out.

(3) Every man for the time being called out by any such directions as aforesaid shall attend at the time and place fixed by those directions, and shall be deemed at and after that time to be called out on permanent service.

(4) Where a Secretary of State has given any directions under the last foregoing subsection, he may at any time thereafter give such directions as he may think fit for terminating the service under subsection (1) of section six of this Act of men called out by the directions under the last foregoing subsection, but without prejudice to the power of the Secretary of State by further directions given under the last foregoing subsection to call out for further service any man whose service has been terminated by directions given under this subsection.

(5) Upon the making of a proclamation under subsection (3) of section five of this Act a Secretary of State shall give such directions as may seem necessary or proper for carrying the said proclamation into effect.

Calling out
in aid of the
civil power.

10.—(1) It shall be lawful for a Secretary of State, at any time when occasion appears to require, to call out the whole or so many as he thinks necessary of the men of the army reserve, to aid the civil power in the preservation of the public peace.

(2) It shall be lawful for any officer commanding His Majesty's forces in any town or district, on the requisition in writing of any justice of the peace, to call out for the purpose aforesaid the men of the army reserve who are resident in the town or district or so many of them as he may think necessary.

(3) Any power by this section vested in a Secretary of State may, as regards men resident in Northern Ireland, be exercised also by the Governor of Northern Ireland.

Government,
discipline and
pay.

11. Subject to the provisions of this Act, orders or regulations made thereunder may make provision with respect to the government, discipline and pay of the army reserve, and with respect to other matters and things relating to the army reserve:

Provided that no such order or regulation shall render a man who entered the army reserve before the date of the order or regulation liable without his consent to be appointed, transferred or attached to any military body to which he could not, without his consent, have been appointed, transferred or attached if the order or regulation had not been made.

Transfer
outside
United
Kingdom.

12.—(1) Where a soldier of the regular forces is serving outside the United Kingdom at the time when he is entitled to be transferred to the army reserve, he may, at his own request, be so transferred without being required to return to the United Kingdom, subject however to such conditions as to residence, as to liability to be called out for annual training or on permanent service or in aid of the civil power, or as to any other matters, as may be prescribed by regulations made under this Act.

(2) The provisions of this Act shall apply to a man transferred to the army reserve in pursuance of this section subject to such adaptations as may be so prescribed as aforesaid.

Enlistment
and residence
outside
United
Kingdom.

13.—(1) Men may be enlisted into the army reserve in any of the territories to which this section applies, not being territories specified in the Second Schedule to this Act, subject however to such conditions as may be prescribed by regulations made under this Act.

(2) A man of the army reserve may, if so authorised by or under the directions of a Secretary of State, reside in any of the territories to which this section applies, subject however to such conditions as may be so prescribed as aforesaid.

(3) This section applies to the following territories, that is to say, to any part of His Majesty's dominions outside the United Kingdom and to any British protectorate.

(4) The provisions of this Act shall apply—

(a) to any enlistment under subsection (1) of this section, and

(b) to a man of the army reserve during such time as he resides outside the United Kingdom in pursuance of an authorisation of the Secretary of State under subsection (2) of this section,

subject in either case to such adaptations as may be prescribed by regulations made under this Act, being adaptations necessary for the purpose of adapting those provisions to the circumstances of the several territories to which this section applies.

(5) His Majesty may by Order in Council make provision for including among the territories specified in the Second Schedule to this Act any part of His dominions outside the United Kingdom, the Channel Islands and the Isle of Man, being a part of His dominions to which responsible government has been granted since the twentieth day of July, nineteen hundred and six and not being a Dominion other than Ceylon.

14.—(1) Any man of the army reserve who, being called out on permanent service or in aid of the civil power, fails, without leave lawfully granted or such sickness or other reasonable excuse as may be allowed in the prescribed manner, to appear at any time and place at which he is required on being so called out to attend, shall be guilty, according to the circumstances, of desertion or absence without leave, and on conviction by court-martial shall be punishable as for an offence under section twelve or, as the case may be, section fifteen of the Army Act. Punishment for failure to attend for permanent service, annual training, etc.

(2) Any man of the army reserve who, being called out for annual training, fails without such leave or excuse as aforesaid to appear at any time and place at which he is required on being so called out to attend, shall be guilty of absence without leave, and on conviction by court-martial shall be punishable as for an offence under the said section fifteen.

(3) Any man of the army reserve who commits an offence under section twelve or section fifteen of the Army Act may be tried, convicted and punished under that Act whether or not otherwise subject to military law.

(4) Without prejudice to the foregoing provisions of this section, but subject as hereinafter provided, any man of the army reserve who—

- (a) commits an offence contrary to subsection (1) or subsection (2) of this section, or section twelve or section fifteen of the Army Act, or
- (b) being a man serving in the army reserve for a term of part-time service within the meaning of Part I of the Act of 1948, fails without reasonable excuse to attend at any time and place appointed for training under the said Part I, or to perform such training for the period, and in accordance with the other conditions, laid down in respect thereof under the said Part I,

shall be liable on summary conviction to a fine of not less than forty shillings and not more than twenty-five pounds, and in default of payment of the fine to imprisonment for any term not less than seven days and not more than the maximum term allowed by law for non-payment of the fine, and may in any case be taken into military custody.

(5) Section one hundred and fifty-four of the Army Act shall apply to a deserter or absentee without leave as it applies to a deserter or absentee without leave within the meaning of that Act, so however that the delivery of a man of the army reserve into military custody under that section, or his committal thereunder for the purpose of being so delivered, shall not prevent his subsequently being tried as provided by the last foregoing subsection.

(6) Nothing in paragraph (b) of subsection (4) of this section shall apply in the case of a man who fails to comply with a training notice served upon him under section five of the Act of 1948, or affect the provisions of Part I of that Act relating to the punishment of a man for that offence.

Punishment
for inducing
man of army
reserve to
desert or
absent himself.

15.—(1) Any person who, in the United Kingdom or elsewhere, by any means whatsoever—

- (a) procures or persuades any man of the army reserve to commit an offence of desertion, or attempts to procure or persuade any such man to commit such an offence, or
- (b) knowing that any such man is about to commit such an offence aids or assists him in so doing, or
- (c) knowing any such man to be a deserter conceals the man, or aids or assists him in concealing himself, or employs or continues to employ him or aids or assists in his rescue,

shall be liable on summary conviction to a fine not exceeding thirty pounds or to imprisonment for a term not exceeding six months.

(2) The last foregoing subsection shall apply to absence without leave and absentees without leave as it applies to desertion and deserters, but with the substitution for the reference to such a fine or imprisonment as is therein specified of a reference to a fine not exceeding twenty pounds.

(3) Any person who, knowing any man of the army reserve to be a deserter within the meaning of the Army Act, employs or continues to employ the man, shall be deemed to aid him in concealing himself within the meaning of paragraph (3) of section one hundred and fifty-three of the Army Act (which provides, among other things, for the punishment of persons concealing deserters from the regular forces).

16. Any person who falsely represents himself to be a deserter or absentee without leave from the army reserve shall be liable, on summary conviction, to imprisonment for a term not exceeding three months. False pretence
of desertion,
etc.

17.—(1) Any man of the army reserve who—

- Punishment
of offences
against orders
and
regulations.
- (a) fails without reasonable excuse on two consecutive occasions to comply with the orders or regulations made under this Act respecting the payment of the army reserve; or
 - (b) when required by or in pursuance of the orders or regulations made under this Act to attend at any place, fails without reasonable excuse to attend in accordance with the requirement; or
 - (c) uses threatening or insulting language or behaves in an insubordinate manner to any officer or warrant or non-commissioned officer who in pursuance of the orders or regulations made under this Act is acting in the execution of his office, and who would be the superior officer of the offender if he were subject to military law; or
 - (d) by any fraudulent means obtains or is an accessory to the obtaining of any pay or other sum contrary to the orders or regulations made under this Act; or
 - (e) fails without reasonable excuse to comply with the orders or regulations made under this Act,

shall be guilty of an offence under this section.

(2) Any man of the army reserve who commits an offence under this section, whether otherwise subject to military law or not, shall be liable—

- (a) on conviction by court-martial to suffer imprisonment, or such less punishment as is mentioned in the Army Act; or

- (b) on summary conviction to a fine of not less than forty shillings and not more than twenty-five pounds, and in default of payment of the fine to imprisonment for any term not less than seven days and not more than the maximum term allowed by law for non-payment of the fine;

and may in any case be taken into military custody.

(3) A certificate purporting to be signed by an officer who is therein mentioned as an officer appointed to pay a man of the army reserve and stating that the man has failed on two consecutive occasions to comply with the orders or regulations made under this Act respecting the payment of the army reserve shall, without proof of the signature or appointment of the officer, be evidence of the failure.

Where a person other than an officer is appointed to pay men of the army reserve, this subsection shall apply to certificates purporting to be signed by him as it applies to certificates purporting to be signed by an officer in the like behalf.

(4) Where a man of the army reserve is required by or in pursuance of the orders or regulations made under this Act to attend at any place, a certificate purporting to be signed by an officer or person who is therein mentioned as being appointed to be present at that place for the purpose of inspecting men of the army reserve, or for any other purpose connected with the army reserve, and stating that the man failed to attend in accordance with the said requirement shall, without proof of the signature or appointment of the officer or person, be evidence of the failure.

**Trial of
offences.**

18.—(1) Any offence which under this Act is punishable on conviction by court-martial shall, for all purposes of and incidental to the arrest, trial and punishment of the offender, including the summary disposal of the case by his commanding officer, be deemed to be an offence under the Army Act, so however that references in that Act to forfeitures and stoppages shall be construed in relation to any such offence as references to such forfeitures and stoppages as may be prescribed.

(2) Any offence which under this Act is punishable on summary conviction may be prosecuted, and any fine recoverable on such conviction may be recovered, in manner provided by sections one hundred and sixty-six to one hundred and sixty-eight of the Army Act in like manner as if those sections were herein re-enacted and in terms made applicable to proceedings under this Act.

(3) Save as provided by the said section one hundred and sixty-six, the minimum fixed by this Act for the amount of any fine or for the term of any imprisonment shall be duly observed

by courts of summary jurisdiction and shall, notwithstanding anything contained in any other Act, not be reduced by way of mitigation or otherwise.

(4) Where a man of the army reserve commits in the presence of an officer an offence under the last foregoing section, or an offence under subsection (2) or subsection (3) of section one hundred and forty-two of the Army Act (which relates to the offence of personation), that officer may, if he thinks fit, order the offender, in lieu of being taken into military custody, to be taken into custody by any constable and to be brought before a court of summary jurisdiction for the purpose of being dealt with by that court.

(5) For all purposes in relation to the arrest, trial and punishment of a person for any offence punishable under this Act, including the summary disposal of the case by the commanding officer, this Act shall extend to the Channel Islands and the Isle of Man.

19. The following provisions shall have effect as respects the trial and punishment of men charged with offences which in pursuance of this Act are cognizable both by a court-martial and by a court of summary jurisdiction:—

Provisions as to offences triable both by court-martial and by court of summary jurisdiction.

- (a) a man so charged shall not be liable to be tried in both of the following ways, that is to say, on the one hand by court-martial or by the case being disposed of summarily by his commanding officer and on the other hand by a court of summary jurisdiction, but shall be proceeded against in one or other of those ways according as may be prescribed;
- (b) proceedings against a man so charged, before either a court-martial, or his commanding officer, or a court of summary jurisdiction, may be instituted whether or not the term of the man's service in the army reserve has expired;
- (c) any such proceedings may, notwithstanding anything in any other Act, be instituted within two months after whichever of the following times is the later, that is to say—
 - (i) the time at which the offence becomes known to an officer who by orders or regulations made under this Act has power to direct the way in which the offender is to be tried; or
 - (ii) the time at which the offender is apprehended, whether by a civil or a military authority;
- (d) nothing in any other Act which provides for a period of limitation respecting the time for hearing and determining offences shall apply in the case of any proceedings so instituted as aforesaid.

Record of
illegal absence.

20.—(1) Where a man of the army reserve is subject to military law, and is unlawfully absent from his duty, a court of inquiry under section seventy-two of the Army Act may be assembled after the expiration of twenty-one days from the date of the man's absence, notwithstanding that the period during which the man was subject to military law is less than twenty-one days, or has expired before the expiration of twenty-one days; and the record mentioned in that section may be entered in manner thereby provided, or in such regimental books and by such officer as may be prescribed.

(2) Where a man of the army reserve fails to appear at the time and place at which he is required upon being called out for annual training or on permanent service to attend, and his absence continues for not less than fourteen days, an entry of the man's absence shall be made by the prescribed officer in the prescribed manner and in the prescribed regimental books and the entry shall be conclusive evidence of the fact of the man's absence.

Application of
provisions of
Army Act as
to evidence.

21.—(1) Section one hundred and sixty-three of the Army Act (which relates to evidence generally) shall apply to all proceedings under this Act.

(2) Section one hundred and sixty-four of the Army Act (which relates to evidence of the civil conviction or acquittal of a person subject to military law) shall apply in the case of a man of the army reserve who is tried by a civil court, whether or not he is at the time of the trial subject to military law.

Application of
enactments
respecting
exemptions
from tolls and
conveyance of
regular forces.

22.—(1) For the purposes of section one hundred and forty-three of the Army Act, and all other enactments relating to the duties, tolls and ferries which are mentioned in that section, officers and men of the army reserve, when going to or returning from any place at which they are required to attend, and for non-attendance at which they are liable to be punished, shall be deemed to be officers and soldiers of the regular forces on duty.

(2) All enactments for the time being in force concerning the conveyance by railway or otherwise of any part of the regular forces, and their baggage, stores, arms, ammunition and other necessities and things, shall apply as if the army reserve were such a part of the regular forces.

Payment and
management of
army reserve
pensions.

23. Where, either before or after the passing of this Act, a man of the army reserve has been called out on permanent service and, having after the termination of that service continued as a man of the army reserve, has become entitled to pension under any order or regulation made under this Act, all powers exercisable for the award and payment of the pension and otherwise in relation thereto shall be exercisable by the like authority as if he were a man discharged from the army on reduction.

24.—(1) Any power or jurisdiction given to, and any act or thing to be done by, to or before, any person holding any military office may in relation to the army reserve be exercised by or done by, to, or before any other person for the time being authorised in that behalf according to the custom of the service. Exercise of powers vested in holder of military office.

(2) Where by this Act, or by any order or regulation made under this Act, any order is authorised to be made by any military authority, the order may be signified by an order, instruction or letter under the hand of any officer authorised to issue orders on behalf of the said military authority, and an order, instruction or letter purporting to be signed by any officer appearing therein to be so authorised shall be evidence of his being so authorised.

25. A man of the army reserve shall not be liable to serve the office of constable, or any other parochial, township or borough office. Exemption from parish offices, etc.

26. The following provisions shall have effect with respect to notices required in pursuance of orders or regulations made under this Act to be given to men of the army reserve:— Service of notices.

(a) a notice may be served on any such man either by being sent by post to his last registered place of abode or by being served in the prescribed manner;

(b) evidence of the delivery at the last registered place of abode of a man of the army reserve of a notice, or of a letter addressed to the man containing a notice, shall be evidence that the notice was brought to the man's knowledge;

(c) the publication of a notice in the prescribed manner in the parish in which the last registered place of abode of a man of the army reserve is situate shall be sufficient notice to him, notwithstanding that a copy of the notice is not served on him;

(d) every constable, and—

(i) as respects things to be done in an urban parish, the clerk to the rating authority,

(ii) as respects things to be done in a rural parish having a parish council, the chairman of the parish council, and

(iii) as respects things to be done in any other rural parish, the chairman of the parish meeting,

shall, when so required by or on behalf of a Secretary of State, conform with the orders and regulations made

under this Act as respects the publication and service of notices, and in default shall be liable on summary conviction to a fine not exceeding twenty pounds.

Orders and regulations.

27.—(1) Where by this Act power is conferred to make provision with respect to any matter by orders or regulations made under this Act,—

- (a) it shall be lawful for His Majesty, by order signified under the hand of a Secretary of State, to make orders with respect to the matter in question, and any such order may be varied or revoked by a subsequent order made in the like manner;
- (b) subject to the provisions of any such order, a Secretary of State may make general or special regulations with respect to the said matter.

(2) Where by this Act power is conferred to make provision with respect to any matter by regulations made under this Act, a Secretary of State may make general or special regulations with respect to the said matter.

(3) All orders and general regulations made in accordance with this section shall be laid before both Houses of Parliament as soon as practicable after they are made, if Parliament be then sitting, or, if Parliament be not sitting, then as soon as practicable after the beginning of the then next session of Parliament.

(4) For the purposes of the Statutory Instruments Act, 1946, this Act shall be deemed to be an Act passed before the commencement of that Act, and any reference in regulations made under subsection (1) of section eight of that Act to any provision of the Reserve Forces Act, 1882 shall, without prejudice to any power to vary or revoke the said regulations, be construed as a reference to the corresponding provision of this Act.

Interpretation.

28.—(1) In this Act, except where the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say:—

“absence without leave” and “desertion” mean respectively absence without leave contrary to subsection (1) or subsection (2) of section fourteen of this Act and desertion contrary to the said subsection (1), and “absentee without leave” and “deserter” shall be construed accordingly;

“the Act of 1948” means the National Service Act, 1948;

“competent military authority” has the same meaning as in Part II of the Army Act;

“man” includes a warrant officer and a non-commissioned officer;

“militiaman” means a man of the army reserve who is serving therein as a militiaman pursuant to section two of this Act;

“prescribed” means prescribed by orders or regulations made under this Act;

other expressions have the same meaning as they have in the Army Act.

(2) This Act shall apply in relation to women as it applies in relation to men.

(3) In section one hundred and ninety of the Army Act, after paragraph (9) there shall be inserted the following paragraph:—

“(10) the expression ‘army reserve force’ means the army reserve”.

29.—(1) The enactments specified in the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule. Repeals, transitional provisions and savings.

(2) Paragraphs 1 to 5 of Part II of the Schedule to the National Service (Adaptation of Enactments) (Military and Air Forces) Order, 1949, shall cease to have effect.

(3) Subsection (1) of section two of the Recall of Army and Air Force Pensioners Act, 1948 (which provides that army pensioners may be recalled under that Act at any time when men of the army reserve are or are deemed to be called out on permanent service under the Reserve Forces Act, 1882) shall have effect in relation to the army reserve as if the words “or are deemed to be” and the words “under the Reserve Forces Act, 1882” were omitted and as if at the end of the subsection there were inserted the following paragraph:—

“In this subsection the expression ‘called out on permanent service’ means called out on permanent service under section five of the Army Reserve Act, 1950 or paragraph (a) of subsection (1) of section six thereof”.

(4) Nothing in this Act shall affect any order, regulation, transfer, requisition, posting, appointment, designation, agreement, record, entry, attachment or certificate made, or direction or notice given, enlistment, re-engagement or attestation effected, proceedings taken, or any other thing done in the exercise of any power or jurisdiction under or by virtue of any enactment repealed by this Act, but any such order, regulation, transfer, requisition, posting, appointment, designation, agreement, record,

entry, attachment, certificate, direction, notice, enlistment, re-engagement, attestation, proceedings or thing shall, if in force at the commencement of this Act and so far as it or they could have been made, given, effected, taken or done under or by virtue of this Act, have effect as if made, given, effected, taken or done under or by virtue of this Act.

(5) This Act, except the following provisions thereof, that is to say—

section six,

subsection (2) of section eight,

subsections (2) and (4) of section nine,

subsection (3) of section nine so far as it relates to men called out under the said section six, and

subsection (3) of this section,

shall be included among the enactments in relation to which His Majesty has power to make Orders in Council under subsection (1) of section twenty-six and subsection (1) of section thirty-two of the Act of 1948 (which provide for the making of Orders in Council modifying enactments relating to the length or conditions of service of men in the armed forces of the Crown in the application of such enactments to men called up under that Act, and for the making of Orders in Council modifying enactments relating to consequential matters).

(6) For the purposes of the India (Consequential Provision) Act, 1949, an enactment in this Act reproducing any provision of the law hereby repealed shall be deemed to have been passed at the date of the making of that provision.

(7) Nothing in the foregoing provisions of this section shall be taken as prejudicing the operation of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals).

(8) The provisions of this Act as to the term of service of men of the army reserve shall have effect subject to the provisions of the Military and Air Forces (Prolongation of Service) Act, 1939, so long as that Act is in operation.

(9) The repeals effected by this Act relate only to the army reserve, and accordingly nothing in this Act shall affect any power to apply in relation to the air force reserve or the officers or men thereof any of the enactments specified in the Third Schedule to this Act or the operation of any of those enactments as so applied.

Short title and
commence-
ment.

30.—(1) This Act may be cited as the Army Reserve Act, 1950.

(2) This Act shall come into operation on the first day of January, nineteen hundred and fifty-one.

SCHEDULES

FIRST SCHEDULE

Sections 6, 8.

TRANSITIONAL PROVISIONS AS TO CALLING OUT ON PERMANENT
SERVICE OF CERTAIN MEN OF ARMY RESERVE

1.—(1) Subject to the provisions of this paragraph, a man of the army reserve who is serving therein as a man transferred thereto in pursuance of the Army Act and who—

- (a) was on the sixteenth day of December, nineteen hundred and forty-nine so serving, or
- (b) having been a soldier of the regular forces on the date aforesaid has been so transferred to the army reserve after that date,

being in either case a man whose character on transfer to the army reserve was good, shall, if he so agrees in writing, be liable during the first five years of his service as a man so transferred or during the residue unexpired of the term of his original enlistment, whichever is the less, to be called out on permanent service under this paragraph:

Provided that—

- (i) the number of men so liable shall not at any one time exceed six thousand, and
- (ii) a man called out under this paragraph shall not be liable to serve more than twelve months.

(2) Any agreement under this paragraph may be revoked by three months' notice in writing.

(3) The power of calling out men under this paragraph shall not be exercised except when they are required for service outside the United Kingdom when warlike operations are in preparation or in progress.

2.—(1) Subject to the provisions of this paragraph, a militiaman who was on the sixteenth day of December, nineteen hundred and forty-nine, serving in the army reserve shall be liable, during the whole of his service therein, or during such part of that service as he so agrees, to be called out on permanent service under this paragraph:

Provided that the number of men so liable shall not at any one time exceed four thousand.

(2) Any agreement under this paragraph may provide for the revocation thereof by such notice in writing as may be therein stated.

(3) The power of calling out men under this paragraph shall not be exercised except when they are required for service outside the United Kingdom and the Isle of Man when warlike operations are in preparation or in progress.

3. Any exercise of the power of calling out men under paragraph 1 or paragraph 2 of this Schedule shall be reported to Parliament as soon as may be.

4. The numbers of men for the time being called out under paragraph 1 or paragraph 2 of this Schedule shall not be reckoned in the numbers for the time being authorised by Parliament for the regular forces.

Section 13.

SECOND SCHEDULE

TERRITORIES IN WHICH MEN MAY NOT BE ENLISTED INTO
ARMY RESERVE

Canada.
Australia.
New Zealand.
Union of South Africa.

Section 29.

THIRD SCHEDULE

ENACTMENTS REPEALED

Session and chapter	Short title	Extent of Repeal
	The Army Act	In section eighty-eight, subsection (4); in section ninety-two, subsection(3).
45 & 46 Vict. c. 48.	The Reserve Forces Act, 1882	The whole Act, so far as still in force.
61 & 62 Vict. c. 9.	The Reserve Forces and Militia Act, 1898.	The whole Act, so far as still in force.
62 & 63 Vict. c. 40.	The Reserve Forces Act, 1899	The whole Act.
63 & 64 Vict. c. 42.	The Reserve Forces Act, 1900	The whole Act, so far as still in force.
6 Edw. 7. c. 11.	The Reserve Forces Act, 1906	The whole Act.
7 Edw. 7. c. 9.	The Territorial and Reserve Forces Act, 1907.	Sections thirty to thirty-three and thirty-five, so much of sections thirty-eight to forty as relates to the army reserve, and in section forty-one the words from "and so far " to the end.
8 Edw. 7. c. 2.	The Army (Annual) Act, 1908	Section four.
11 & 12 Geo. 5. c. 37.	The Territorial Army and Militia Act, 1921.	Section two.
1 Edw. 8 & 1 Geo. 6. c. 17.	The Reserve Forces Act, 1937	The whole Act.
12, 13 & 14 Geo. 6. c. 96.	The Auxiliary and Reserve Forces Act, 1949.	Sections twelve and thirteen; section seventeen so far as it relates to the army reserve; and in section eighteen, subsection (3).

Table of Statutes referred to in this Act.

Short Title	Session and Chapter
Reserve Forces Act, 1882	45 & 46 Vict. c. 48.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Reserve Forces and Militia Act, 1898	61 & 62 Vict. c. 9.
Reserve Forces Act, 1899	62 & 63 Vict. c. 40.
Reserve Forces Act, 1900	63 & 64 Vict. c. 42.
Reserve Forces Act, 1906	6 Edw. 7. c. 11.
Territorial and Reserve Forces Act, 1907	7 Edw. 7. c. 9.
Army (Annual) Act, 1908	8 Edw. 7. c. 2.
Territorial Army and Militia Act, 1921	11 & 12 Geo. 5. c. 37.
Reserve Forces Act, 1937	1 Edw. 8. & 1 Geo. 6. c. 17.
Military and Air Forces (Prolongation of Service) Act, 1939	2 & 3 Geo. 6. c. 90.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
National Service Act, 1948	11 & 12 Geo. 6. c. 64.
Recall of Army and Air Force Pensioners Act, 1948	12 & 13 Geo. 6. c. 8.
India (Consequential Provision) Act, 1949	12, 13 & 14 Geo. 6. c. 92.
Auxiliary and Reserve Forces Act, 1949	12, 13 & 14 Geo. 6. c. 96.

CHAPTER 33

Air Force Reserve Act, 1950

ARRANGEMENT OF SECTIONS

Section

1. The air force reserve.
2. Service as a special reservist.
3. Procedure and term of service on enlistment or re-engagement.
4. Calling out for annual training, special courses, etc.
5. Calling out on permanent service by proclamation.
6. Calling out on permanent service for home defence and overseas service.
7. Status of men on permanent service.
8. Duration of service of men called out on permanent service.
9. Directions for calling out on permanent service.
10. Calling out in aid of the civil power.
11. Government, discipline and pay.
12. Transfer outside United Kingdom.
13. Enlistment and residence outside United Kingdom.
14. Punishment for failure to attend for permanent service, annual training, etc.
15. Punishment for inducing man of air force reserve to desert or absent himself.
16. False pretence of desertion, etc.
17. Punishment of offences against orders and regulations.
18. Trial of offences.
19. Provisions as to offences triable both by court-martial and by court of summary jurisdiction.